

BEFORE THE PROCUREMENT REVIEW COMMITTEE

Balochistan Public Procurement Regulatory Authority, Quetta

PRC Appeal No. 27/2026

M/s Leading Light Pakistan Traders
Through its Authorized Representative

... Appellant

Versus

1. Secretary, Local Government & Rural Development Department, Government of Balochistan
2. Chief Officer, Municipal Corporation Pishin
3. Chairman, Grievance Redressal Committee, Local Government & Rural Development Department, Government of Balochistan
4. Chief Officer, Municipal Corporation Pishin
5. M/s Niamatullah Sanzer
6. Assistant Engineer, Municipal Corporation Pishin

... Respondents

QUORAM

Mr. Habib-Ur-Rehman Jamot.....Chairman
Mr. Iftikhar Ahmed Sanjrani.....Member
Engr. Junaid Shah..... Member
Mr. Iftikhar Ahmed Mir..... Private Member
Syed Muheebullah..... Private Member

DECISION

Date of Decision: ____ February, 2026

1. INTRODUCTION

This Appeal under Rule 56-A of the Balochistan Public Procurement Rules, 2014 ("BPPRA Rules, 2014") assails the technical disqualification of the Appellant in respect of TSE No. 252609859983 titled "*Provision and Fixing of Solar Street Lights*" and challenges the order dated 08-01-2026 passed by the Grievance Redressal Committee (GRC), whereby the complaint of the Appellant was dismissed on the ground of limitation.

2. FACTUAL BACKGROUND

The Municipal Corporation Pishin invited bids through Single Stage Two Envelope Procedure under PRQ No. 271 dated 18-09-2025. Technical bids were opened on 03-10-2025. Out of nineteen

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DECISION

Date of Decision: 25th February, 2026

1. INTRODUCTION

This Appeal under Rule 56-A of the Balochistan Public Procurement Rules, 2014 ("BPPRA Rules, 2014") assails the technical disqualification of the Appellant in respect of TSE No. 252609859983 titled "*Provision and Fixing of Solar Street Lights*" and challenges the order dated 08-01-2026 passed by the Grievance Redressal Committee (GRC), whereby the complaint of the Appellant was dismissed on the ground of limitation.

2. FACTUAL BACKGROUND

The Municipal Corporation Pishin invited bids through Single Stage Two Envelope Procedure under PRQ No. 271 dated 18-09-2025. Technical bids were opened on 03-10-2025. Out of nineteen

bidders, sixteen were declared non-responsive. The Appellant was disqualified on the following grounds:

- Non-submission of similar work experience;
- Technical and financial documents not duly stamped and signed;
- Last three years audit report missing.

Financial bids were opened on 31-12-2025 and Respondent No. 4 was declared the lowest evaluated bidder.

Being aggrieved from the disqualification the Appellant challenged the same before the CRC by filing a complaint before the GRC on 02-01-2026, which was rejected on 08-01-2026 on the ground of limitation, without adjudicating upon the merits.

3. POINTS FOR DETERMINATION

The following questions arise for determination:

- i. Whether the Appellant fulfilled the eligibility requirement of similar work experience;
- ii. Whether the rejection on account of unsigned and unstamped documents was lawful;
- iii. Whether the Appellant failed to submit audit reports of last three years;
- iv. Whether the complaint before the GRC was time-barred;
- v. Whether the bidding process suffered from material irregularities warranting interference of this forum.?

4. DISCUSSION AND FINDINGS

(i) Similar Work Experience

The eligibility criteria required submission of similar work experience. Upon scrutiny of record, the Appellant has failed to produce documentary proof of having executed work of similar nature as stipulated in the bidding documents. Compliance with mandatory eligibility requirements cannot be waived.

However, this Committee notes that the expression "similar nature" was not clearly defined in measurable or objective terms. Absence of clarity in evaluation criteria offends Rule 34 of the BPPRA Rules, 2014, which mandates formulation of clear and unambiguous evaluation standards.

When confronted the Appellant failed to justify that the firm had submitted relevant experience and examination of brochure revealed that the Appellant had submitted irrelevant works which do not meet the criteria set forth by the Procuring Agency.

(ii) Unsigned and Unstamped Documents

The Appellant was declared non-responsive on the ground that technical and financial documents were not stamped and signed. The bidding documents, however, do not explicitly specify:

- Which documents were required to be signed and stamped;
- Whether each page required stamping;

- The consequences of non-compliance.

Rule 34 expressly provides that failure to provide clear and unambiguous evaluation criteria shall amount to mis-procurement. Disqualification on vague or unspecified formalities is arbitrary and contrary to Rule 4, which requires fairness, transparency, and equal treatment.

The record further reflects that identical documentation submitted by the Appellant in another TSE under the same Notice Inviting Tender was accepted by the same Procuring Agency. Such inconsistency undermines the integrity of the evaluation process. The Procuring Agency has failed to demonstrate uniform application of this requirement. Selective enforcement of eligibility conditions violates the doctrine of equal treatment embedded in Rule 4 of the BPPRA Rules, 2014.

(iii) Audited Financial Statements

While the NIT required submission of audited accounts for three years, the bidder failed to provide the same.

(iv) Limitation Before GRC

The Appellant filed complaint on 02-01-2026, two days after opening of financial bids on 31-12-2025. The CRC rejected the complaint on 8/1/2026 on the ground of being barred by limitation without citing any specific limitation clause under Rule 56 or providing computation thereof.

This committee observes that the CRC has wrongly rejected the application of the Appellant as time barred since the limitation for filing application before CRC is three days after uploading of complete evaluation report which is 31/12/2025. The record reveals that the application has been filed after two days of uploading of complete evaluation report. This committee further observed that the CRC instead of passing of any decision, forwarded a letter to the Appellant for rejection of his Appeal which is violation of BPP Rules.

(v) Structural Defects in the Bidding Process

It is further observed that the Procuring Agency issued a single Notice Inviting Tender encompassing 36 separate TSEs with identical submission and opening schedule in a manual procurement environment. Such practice, though not expressly prohibited, seriously compromises transparency, effective scrutiny, and orderly evaluation.

The cumulative effect of:

- Ambiguous eligibility criteria;
- Inconsistent application of requirements;
- Hyper-technical rejection on unspecified formalities;
- Arbitrary dismissal of complaint on limitation;
- Administrative impracticability in handling 36 TSEs simultaneously;

establishes that the bidding process has suffered from procedural irregularities.

The integrity of procurement lies not merely in outcome but in fairness of process. Once the process stands vitiated, continuation thereof would defeat the principles of transparency and value for money.

5. CONCLUSION

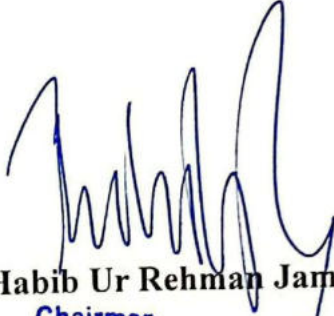
The Committee observes that the procurement process in question suffers from material irregularities and violations of Rules 4 and 34 of the BPPRA Rules, 2014. The defects identified need serious consideration by the Procuring Agency as they go to the root of the bidding framework itself.

6. ORDER

Consequently, this Appeal is **dismissed** on the grounds that the Appellant failed to provide three similar assignments with his brochure while submitting his bid.

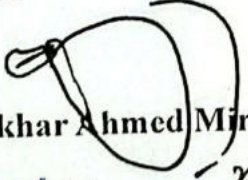
The Registrar of this Committee is directed to communicate a copy of this decision to the Appellant and all Respondents.

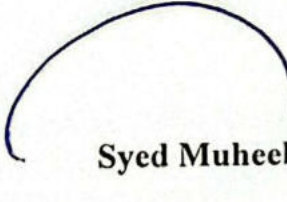
Ordered accordingly.


Habib Ur Rehman Jamot
Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA) 25/2/2026


Iftikhar Ahmed Sanjrani
25/02/2026
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